

HEADNOTE

“1. The fact that the applicant relies, as its main request, on a claim set that is narrower than the claims as granted in the patent in suit, namely a combination of Claims 1 and 2 of the patent in suit, does not preclude the ordering of preliminary measures.

2. If, in proceedings regarding preliminary measures, auxiliary requests are submitted for the first time in the reply brief and concern the addition of a feature that is not, in this form, the subject matter of a dependent claim, the defendants would have had only a very short period of time to prepare their defense, particularly with regard to the issue of the patent's validity, thereby significantly restricting their ability to defend themselves. Such auxiliary requests shall therefore not be admitted.”

COURT
Local Division in Hamburg

PROCEEDINGS
Application for provisional measures

PATENT
EP 4 242 056 B1

Child seat system, comprising a seat element and a basis mountable on a motor vehicle

KEYWORDS

narrower claim set than in granted patent

auxiliary requests in proceedings regarding...

auxiliary requests in expedited proceedings

SUMMARY

The Local Division in Hamburg ruled on an application for provisional measures. The patent at issue relates to a child seat system, comprising a seat element and a basis mountable on a motor vehicle. According to the headnotes of the decision, an applicant may request preliminary measures even if their main claim set is narrower than the claims originally granted in the patent. When auxiliary requests introducing new features are submitted for the first time in reply briefs, they will not be admitted because defendants would lack adequate time to prepare their defense on validity issues.